

HCJD/C-21

**JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT**

Murder Reference No. 99 of 2010

Criminal Appeal No. 1296 of 2010

Muhammad Nisar **Versus** State

Criminal Revision No. 1101 of 2009

Farman Ali **Versus** State & another

JUDGMENT

Date of Hearing: 09.09.2014
Appellant by: Mr. Muhammad Aslam Nagi, Advocate assisted by Ms. Shabnam Aslam Nagi, Advocate.
Mr. Abdul Majeed Chishti, Advocate/Defence Counsel at State expense.
Complainant by: Hafiz Muhammad Hanif Zafar and Ch. Hamd-ur-Rehman Wasim Zafar, Advocates for the complainant.
State by: Ch. Muhammad Mustafa, Deputy Prosecutor General.

Syed Shahbaz Ali Rizvi, J:- The appellant namely Muhammad Nisar along with co-accused Muhammad Ashraf and Fozia Bibi (since acquitted) was tried in a complaint case emanated from F.I.R. No.211 dated 12.10.2006 for offence under sections 302/34 & 109 P.P.C., registered at Police Station Raja Jang, District Kasur and convicted by the learned Additional Sessions Judge, Kasur, under Section 302(b) P.P.C., vide impugned judgment dated 17.12.2009 and sentenced as under: -

Muhammad Nisar:

Death u/s 302 (b) PPC for the murder of Muhammad Siddique (deceased) with compensation to the tune of Rs.100,000/- u/s 544-A, Cr.P.C to be paid to the legal heirs of the deceased and in default thereof, to further undergo six months S.I.

The appellant was ordered to be hanged by his neck till his death.

2. Through this single judgment, we propose to decide Murder Reference No.99 of 2010 forwarded by the learned trial Court under Section 374 Cr.P.C. for confirmation or otherwise of the sentence of the convict Muhammad Nisar along with Criminal Appeal No.1296 of 2010 filed by the appellant and Criminal Revision No.1101 of 2009 for enhancement of compensation awarded to the appellant.

3. The facts in brief, as disclosed by Farman Ali (PW-1) in his complaint (Ex.PB) are that on 12.10.2006 he along with his mother and brothers Abdul Rehman and Bashir went to see his brother Muhammad Siddique (deceased) aged about 50/55 years at his residence situated in Village Rao Khan Wala, Basti Doctor Wali. At about 3:30 p.m., they were sitting with Muhammad Siddique when Mst. Fozia Bibi wife of Muhammad Siddique demanded money whereupon Muhammad Siddique said to her that she used to give money to her brothers. Mst. Fozia Bibi extended threats to her husband to have him killed by her brothers. She went and brought with her Nisar Ahmad armed with gun .12 bore and Ashraf armed with gun .12 bore. She asked her brothers to teach a lesson to Muhammad Siddique for not giving her the money. Nisar Ahmad raised a *lalkara* to kill Muhammad Siddique and made a fire shot with his .12 bore gun which hit Muhammad Siddique on the right side of his abdomen, who fell down. Muhammad Ashraf fired a shot with his .12 bore gun which hit on right arm of Muhammad Ashraf. The accused, brandishing their weapons, fled away from the crime spot. The complainant along with his brothers removed the injured Muhammad Siddique to the hospital but he succumbed to the injuries on the way.

The motive behind the occurrence was that the deceased Muhammad Siddiq had lent money to Nisar Ahmad and Mst. Fauzia used to demand more money from her husband for her brothers and

for this reason, on her abetment, Nisar and Ashraf committed the murder of deceased.

4. The background of filing of the private complaint by Farman Ali, the complainant of F.I.R., is that he was not satisfied with the investigation of the case conducted by Ali Raza, Sub Inspector (CW-9). After recording of the cursory evidence led by the complainant, the learned trial court summoned Muhammad Nisar, appellant, Muhammad Ashraf and Fozia Bibi (since acquitted) to face the trial. On 18.06.2007, formal charge under Section 302, 109/34 P.P.C. was framed against the accused persons to which they pleaded not guilty and claimed to be tried.

5. The complainant in order to prove its case produced as many as five witnesses. Dr. Safdar Iqbal (PW-4) conducted the postmortem examination of the deceased on 13.10.2006 at 9:00 a.m. and observed as under:-

EXTERNAL EXAMINATION:

1. *Penetrating lacerated wound 5 cm x 4 cm with inverted margins, blackening is present around the margin, present over front of right upper arm. (Entry wound).*
2. *Penetrating lacerated wound 10 cm x 6 cm with everted margins, present over back of right upper arm, 5 cm above the right el bow. (Exit wound).*
3. *Penetrating lacerated wound 5 cm x 4 cm with inverted margins, blackening was present around the margin over right side of front of abdomen, 6 cm from umbilicus. (Entry wound).*

OPINION

The doctor was of the opinion that the cause of death was shock due to haemorrhage which was both internal and external due to injury to vital organs in abdomen, intestine, mesentery kidney, urinary bladder and major vessels in right upper arm caused by

injuries No. 1, 2 & 3 which were firearm injuries. All the injuries were anti mortem and sufficient to cause death under ordinary course of nature. Time between injury and death was half to one hour approximately, and between death and postmortem was 16-18 hours approximately.

6. The ocular account of the occurrence was furnished by Farman Ali, PW-1 and Abdul Rehman, PW-2, who almost narrated the story as contained in the complaint. Muhammad Nasrullah, Draftsman appeared as PW-3, who prepared the scaled site plan Ex.PC and Ex.PC/1. Nisar Ahmad appeared as PW-5 and deposed that he identified the dead body of Muhammad Siddique, deceased.

7. The complainant through his statement dated 10.09.2009 gave up Hajra Bibi, PW, having become out of senses, Saeed Ahmad, PW, being unnecessary, Bashir Ahmad since died and closed the evidence in private complaint. Feeling necessary the statements of the witnesses not examined by the complainant, the learned trial court summoned and examined Fozia Bibi wife of the deceased as CW-1. Saeed Ahmad has been recorded as CW-2, Muhammad Rafique as CW-3, Tahir Islam Constable as CW-4, Hajra Bibi, mother of the complainant, as CW-5, Mst. Irshad Bibi as CW-6, Abdul Razzaq Constable as CW-7, Tasawar Ali Sub Inspector as CW-8 and Ali Raza Sub Inspector as CW-9 who was the Investigating Officer of the case and his deposition, in brief, is that on 12.10.2006 he along with other police officials was present at Nalka Stop for Patrolling Duty where Farman Ali complainant appeared before him at 6:00 p.m. and got recorded his statement Ex.PA; he proceeded to the place of occurrence, inspected the dead body, collected the blood stained earth from the spot and secured vide memo Ex.CW-9/A; recorded the statements of the witnesses under Section 161 Cr.P.C.; conducted the formal proceedings; on 14.10.2006 he recorded the statements of Fozia Bibi and Irshad Bibi;

on 17.10.2006 he arrested accused Nisar Ahmad and during interrogation on 21.10.2006 got recovered a gun .12 bore double barrel from his house which was taken into possession and secured vide recovery memo Ex.C.W9/G; declared accused Muhammad Ashraf innocent being not present at the spot at the time of occurrence and submitted the challan under Section 173 Cr.P.C. before the learned trial court.

8. The reports of the Chemical Examiner, Serologist and of Forensic Science Laboratory were exhibited as Ex.CA, Ex.CB and Ex.CC respectively.

9. Thereafter the statement of the appellant was recorded on 16.11.2009 under Section 342 Cr.P.C., wherein he negated the allegations levelled against him and professed his innocence. In reply to the question “why the case against you and why the PWs deposed against you?”, the appellant Muhammad Nisar replied as under:-

“I am innocent. At the time of alleged occurrence I was present in City Raiwind at my shop from where I reached place of occurrence i.e house of Muhammad Siddique deceased after Maghrab prayer. My co-accused Ashraf was in his house with my father and other family members. By that time Amanat Ali and Abdur Rehman and others were also present in front of our haveli who after the occurrence reached the house of occurrence and found Muhammad Siddique in an injured condition where Siddique in injured condition disclosed to his wife Fozia Bibi in the presence of one Majid regarding the occurrence committed by Farman Ali and his brother Abdur Rehman. The complainant, his brother Abdur Rehman and Bashir Ahmad and their mother Hajran Bibi were inimical towards me and my family due to land and money dispute between Siddique and his brothers. The complainant party just to save their skin falsely involved me and my co-accused after giving huge bribe to Ali Raza SI and with the influence of Haji Munir Ahmad their relative, a friend of Ali Mohsan SI Investigation, Kasur. As the PWs were inimical towards me so they have deposed against me and my co-accused falsely.”

10. The appellant did not appear as his own witness to make statement on oath under Section 340 (2) Cr.P.C. to discard the allegations levelled against him, however, he produced in his defence Mehr Majid Hussain as DW-1, Rana Muzaffar Khan DW-2 and Muhammad Akram DW-3.

11. After conclusion of trial the appellant was convicted and sentenced as mentioned above by the learned trial Court; hence the instant appeal.

12. Learned counsel for the appellant contends that initially case was set up in the F.I.R. with quite different motive, however, after submission of report under Section 173 Cr.P.C. on 15.01.2007 wherein Muhammad Ashraf co-accused of the appellant was declared innocent, a new case was set up by the same complainant through a private complaint wherein motive has been totally changed which reflects *malafide* of the complainant; that as far as recovery of .12 bore gun from the appellant Nisar is concerned, that is totally inconsequential as no empties were taken into possession by the Investigating Officer and no such material was sent to the Forensic Science Laboratory, therefore, the recoveries are inconsequential; that there is inordinate delay in postmortem examination of the dead body of the deceased conducted on 13.10.2006 at 9:00 a.m. as per the postmortem report (Ex.PD); that the delay in postmortem has rendered the evidence totally doubtful and inconsequential; that the prosecution story has already been disbelieved by the trial court to the extent of two co-accused of the appellant and the same cannot be given any weight in the absence of any corroborative evidence; that the ocular account furnished by two real brothers of the deceased cannot be given any weight as both are closely related, interested and chance witnesses; that even otherwise the sentence awarded to the appellant is harsh as the motive has been disbelieved and that co-

accused of the appellant have already been acquitted and no appeal against their acquittal has been filed.

13. On the other hand, the learned Law Officer assisted by the learned counsel for the complainant contends that this is a daylight occurrence; that the parties are closely related; that both the eyewitnesses PW-1 and PW-2 narrated the occurrence in a straightforward manner which is fully corroborated by the medical evidence; that the Investigating Officer from the very beginning did not conduct the investigation fairly, therefore, the complainant had to file a private complaint; that the delay in conducting the postmortem, is well explained and cannot be fatal to the prosecution as no illegal advantage has been derived by the prosecution; that Mst. Fozia Bibi, widow of the deceased, nominated accused in the private complaint did not make any attempt for registration of case against the real accused mentioned in her statement and she had also not filed any private complaint to rebut and negate the stance taken in the F.I.R; that the prosecution has sufficiently proved its case against the appellant while the defence version is completely unreliable and improbable; that rule of *falsus in uno falsus in omni bus* does not have recognition in our judicial system and the appellant has rightly been convicted. Finally, craved for the dismissal of the appeal and confirmation of death sentence awarded to the appellant by the learned trial court and enhancement of awarded compensation.

14. We have heard the learned counsel for the appellant, the learned Deputy Prosecutor General as well as the learned counsel for the complainant and perused the record with their able assistance.

15. We have noticed that the fateful occurrence took place on 12.10.2006 at about 4 p.m. and the PWs present at the scene of occurrence, immediately tried to shift the injured to the hospital at Lahore but on their way, he succumbed to the injuries, upon which

they took the dead body back to home and thereafter the matter was reported to the police and statement of the complainant (Ex.PA) was recorded at 6:30 p.m. while the FIR (Exh-PA/1) was registered at 7:00 p.m. As the priority of the prosecution witnesses was to save the life of their injured brother, they preferred to make effort to provide medical treatment to him, hence it can safely be said that the time of 2 ½ hours was consumed by the complainant in natural course of events and in this view of the matter, the police was informed within a reasonable time and without any inordinate delay. Similarly, as explained in the FIR, the delay in post mortem examination of the deceased, which was conducted at 9 a.m. in the next morning has sufficiently been explained by PW.5 Nisar Ahmad as during his cross examination, he stated as under: -

“I and my Mamoon Saeed accompanied the dead body. Again said we reached DHQ Hospital, Kasur at 9:45/10 p.m. on a Dala. The owner of Dalla was not known to me. Said Dalla was private. The above said ASI also accompanied us to DHQ Hospital, Kasur at that time. At that time, no medical officer was present in the hospital and due to this reason post mortem was not conducted at night time. The ASI returned back to P.S and constables remained with us in the hospital. The ASI deposited the dead body in the mortuary at about 10:15 pm. The ASI on the next day reached at DHQ Hospital with police papers at about 8:30 am. Thereafter the medical officer started post mortem at about 9:15 am.”

Even otherwise, no unchaste benefit of the said delay in post mortem examination of the deceased, seems to have been derived by the complainant.

Time and place of occurrence is not denied by the defence. It is a daylight occurrence, reported by the complainant within a reasonable time and in due course of events. It has also been observed by us that the complainant, after being dissatisfied with the

investigation of Ali Raza SI/I.O (CW.9), also filed a private complaint after about more than four months of the registration of FIR but the stance of the prosecution regarding the role of the appellant Muhammad Nisar remained consistent. Despite the extraordinary lengthy cross examination upon both the eye witnesses Farman Ali PW.1 and Abdul Rehman PW.2, produced by the prosecution to prove the case against the appellant, nothing beneficial to the present appellant could be surfaced. Both the witnesses remained consistent with each other and no material discrepancy is noticed in their statements especially regarding the role of the present appellant. Both PW.1 and PW.2 remained stuck to their stand taken by them in their first statement recorded u/s 154 and 161 Cr.P.C and they also remained in line with each other. It is worth mentioning that to the extent of role of the appellant at the scene of occurrence, not even a single deviation by the eye witnesses, could be pointed out. Mst. Hajra Bibi, mother of the deceased who was given up by the prosecution being out of senses has been examined by the learned trial court as CW.5, despite her old age and the lapse of period of three long years after the occurrence, she remained firm and implicated the appellant as a culprit. The injury attributed to the appellant by the witnesses proved fatal and the medical evidence extended by Dr. Safdar Iqbal (PW.4) corroborated the ocular account as the ante mortem injury No.3 attributed to the appellant, available on the person of the deceased Muhammad Siddique, which is the cause of death, is reflected in the post mortem report Ex.PD and diagrams Ex.PD/1 and Ex.PD/2. The complainant PW.1 and Abdul Rehman PW.2 are the real brothers of the deceased, having no previous enmity with the appellant, having no motive to falsely implicate the appellant in this case with the attribution of fatal injury to the deceased. Both the witnesses cannot be termed as chance witnesses because the presence of real brothers along with their mother in the house of the deceased is quite natural

and normal. Moreover, substitution as alleged by the appellant during the trial, in circumstances of this case cannot be expected because of the fact that the occurrence took place in the broad daylight in the house of the deceased, which is located in a populated area and according to the PW.3, Muhammad Nasrullah, draftsman “it is correct that Rao Khan Wala is a big town. Had the appellant been innocent, the people from the locality would have joined the investigation to negate the allegations against him. At least Fauzia Bibi would have agitated before the police high ups or she would have filed a private complaint to bring on record the real facts but conversely perusal of the statement of Ali Raza SI/I.O Cw.9 who in his statement, verified the fact of recording statement of Fauzia Bibi, wife of the deceased, sister of the appellant under section 161 Cr.P.C on 14.10.2006 reflecting that Muhammad Nisar appellant committed the murder of Muhammad Siddique deceased. He has also maintained that during the investigation no one appeared before him in defence of the appellant and he further confirmed at page 4 of his statement that during investigation, Akram, father of the accused, Ashraf brother of accused, Irshad Bibi, Fauzia Bibi and her children namely Shafiq and Amina Bibi appeared before him and gave statement against Nisar appellant. So we are of the confirm opinion that in the circumstances of this case, the contention regarding the substitution is not tenable. Even otherwise, substitution in such like cases is a rare phenomenon.

We feel it necessary to point out a very strange aspect of this case that Fauzia Bibi, widow of the deceased, who was facing the trial as an accused, had been examined as a court witness (CW.1) by the learned trial court. Though, her statement has been evaluated by the learned trial court and has not been given any weight rather has been discarded yet we hold that examining an accused as a court witness is totally a nullity

in the eye of law and such practice cannot be allowed to be adopted because an accused person, facing trial, by no stretch of law, can be examined as a witness at the trial until and unless he is declared approver in accordance with law. It is necessary for recording statement of an accused as a witness to change his status from accused to a witness.

The only way to record statement of an accused on oath has been provided under subsection 2 of Section 340 Cr.P.C through amendment by Ordi. XII of 1985 dated 12.2.1985. PLD 1985 Central St.529, but even then his status cannot be changed and he remains an accused. There is no procedure provided by any statute that a person can be treated as an accused as well as a witness at the same time in one and the same criminal trial. Even otherwise, section 340(2) of Criminal Procedure Code, 1898 provides option to the accused to depose as a witness on oath or not and competence of the accused as a witness is different from compellability. In other words, he may be a competent witness for the defence but cannot be compelled to appear as such by the court or any party. Keeping in view the Article 13 of the Constitution of Islamic Republic of Pakistan, 1973, which *inter alia* provides that **no person shall, when accused of an offence, be compelled to be a witness against himself**. In this view of the matter, we are of the confirm view that calling Fauzia Bibi as a court witness by the learned trial court, leaving no option with her is definitely against the mandate of Article 13 of the Constitution and also against the spirit of well recognized principle of Islamic Jurisprudence that no one can be compelled to be a witness against himself.

16. So far as the contention of the learned counsel for the appellant regarding the credibility of the witnesses keeping in view

the acquittal of co accused Ashraf and Fauzia is concerned; we have observed that in our judicial system, the rule of *falsus in uno falsus in omni bus* is not recognized and the courts of our country are burdened with the responsibility to sift the grain from the chaff, which is rightly done by the trial court as the evidence reflects that the case of the present appellant is on different footing from the case of said acquitted co accused, as admittedly co accused Fauzia Bibi was not nominated in the FIR, her belated nomination by the complainant and the PWs is sufficient to create doubt in the veracity of prosecution case to her extent while the other acquitted co accused Muhammad Ashraf though was nominated in the FIR with a specific role yet during the cross examination, PW.2 has admitted that Shafiq son of the deceased and minor daughter of the deceased made statements to the police in his presence that occurrence was committed by one Mamoon and the same became the result of investigation as Ashraf was declared innocent and nothing was recovered from his possession whereas, the evidence available on record, furnished by Farman Ali PW.1, Abdul Rehman PW.2, Dr. Safdar Iqbal PW.4, Hajran Bibi CW.5 and Ali Raza SI/I.O CW.9, proves the case against the appellant Muhammad Nisar beyond any reasonable doubt. Hence, the appellant has rightly been convicted by the learned trial court.

17. As far as the evidence of motive is concerned; we have noticed that the prosecution remained confused in this regard, as the story available in the FIR Ex.PA/1 reflects that the deceased had borrowed amount from the present appellant while perusal of private complaint Ex.PB and the statements of the prosecution witnesses, reveal that Muhammad Siddiq deceased had given money to Nisar accused as loan. Furthermore, the prosecution has not brought on record any independent evidence to prove the motive part of the occurrence and in this view of the matter, we are of the confirm opinion that the real facts regarding the motive behind the

occurrence and the immediate cause of this unfortunate incident, still remain shrouded in mystery.

18. Though, a 12 bore double barrel gun is alleged to have been recovered at the instance of the appellant yet as no crime empties were taken into possession by the I.O from the place of occurrence and the report of Forensic Science Laboratory regarding gun 12 bore Ex.CC is only to the extent of its being in working order, so the said recovery of weapon and the report Ex.CC remains inconsequential to the prosecution case.

19. The witnesses who appeared to support the stance, taken by the appellant, are not reliable and trustworthy. Even otherwise, the defence taken by the appellant is not believable because of the fact that Farman Ali, PW.1 and Abdul Rehman, PW.2 are not the residents of the town where the occurrence took place, while the appellant is the resident of the same area but even then according to the I.O, no evidence was produced to prove the innocence of the appellant in this case during his investigation. Had the complainant PW.1 and his brothers, PW.2 and the given up witnesses, been the real culprits, the appellant and his family would have been aggressively pursuing the case and raising their voice at all competent forums against them but the situation is different. The appellant was not even present when the police visited the place of occurrence on the first day. Had he been innocent, he would have been present there. Similarly, had the complainant and his brother been the real culprits, they would not have come back to the place of occurrence on the same day with the police to become the complainant and the witnesses of the occurrence. This is a fact, sufficient to speak about the guilt of the appellant and truthfulness of the prosecution evidence adduced by PW.1 and PW.2. In this view of the matter, we are of the confirm opinion that the defence extended by the appellant is not trustworthy and believable; hence brushed aside.

20. Even if we keep the evidence of motive and recovery against the appellant out of consideration, even then the prosecution has proved its case against the appellant beyond reasonable doubt through the confidence inspiring ocular account fully corroborated by the medical evidence, hence the learned trial court has rightly convicted the appellant but so far as the question of sentence is concerned, we have noticed certain extenuating circumstances in this case i.e. ***firstly***, the motive is not proved against the appellant; ***secondly*** the alleged recovery of weapon of offence is inconsequential to the prosecution case, as discussed supra and ***thirdly*** even according to the prosecution's case, the appellant made only a single fire shot and did not repeat the same despite having the opportunity . It is, by now, settled principle of law that while deciding question of sentence, the accused is entitled to the benefit of any available mitigating circumstance. Reliance can be placed on the case titled "***Mir Muhammad alias Miro v. The State*** (2009 SCMR 1188) and "***Muhammad Riaz and another v. The State and another***" (2007 SCMR 1413).

The Hon'ble Supreme Court, in the case titled ***Ghulam Mohy-ud-Din alias Haji Babu and others versus The State*** (2014 SCMR 1034) has recently pleased to observe as under: -

"20. Albeit, in a chain of case-law the view held is that normal penalty is death sentence for murder, however, once the Legislature has provided for awarding alternative sentence of life imprisonment, it would be difficult to hold that in all the cases of murder, the death penalty is a normal one and shall ordinarily be awarded. If the intent of the Legislature was to take away the discretion of the Court, then it would have omitted from clause (b) of section 302, P.P.C. the alternative sentence of life imprisonment. In this view of the matter, we have no hesitation to hold that the two sentences are alternative to one another, however, awarding one or the other sentence shall essentially depend upon the facts and circumstances of each case. There may be multiple factors to award the

death sentence for the offence of murder and equal number of factors would be there not to award the same but instead a life imprisonment. It is a fundamental principle of Islamic Jurisprudence on criminal law to do justice with mercy, being the attribute of Allah Almighty but on the earth the same has been delegated and bestowed upon the Judges, administering justice in criminal cases, therefore, extra degree of care and caution is required to be observed by the Judges while determining the quantum of sentence, depending upon the facts and circumstances of particular case/cases.

21. A single mitigating circumstance, available in a particular case, would be sufficient to put on guard the Judge not to award the penalty of death but life imprisonment. No clear guideline, in this regard can be laid down because facts and circumstances of one case differ from the other, however, it becomes the essential obligation of the Judge in awarding one or the other sentence to apply his judicial mind with a deep thought to the facts of a particular case. If the Judge/Judges entertain some doubt, albeit not sufficient for acquittal, judicial caution must be exercised to award the alternative sentence of life imprisonment, lest an innocent person might not be sent to the gallows. So it is better to respect the human life, as far as possible, rather to put it at end, by assessing the evidence, facts and circumstances of a particular murder case, under which it was committed.

Albeit, there are multiple factors and redeeming circumstances, which may be quoted, where awarding of death penalty would be unwarranted and instead life imprisonment would be appropriate sentence but we would avoid to lay down specific guidelines because facts and circumstances of each case differ from one another and also the redeeming features, benefiting an accused person in the matter of reduced sentence would also differ from one another, therefore, we would deal with this matter in any other appropriate case, where, if proper assistance is given and extensive research is made.

In any case, if a single doubt or ground is available, creating reasonable doubt in the mind of Court/Judge to award death penalty or life imprisonment, it would be sufficient circumstances to adopt alternative course by awarding life imprisonment instead of death sentence.”

21. For what has been discussed above, we feel that in such facts and circumstances of the case, death penalty awarded to the appellant is not justified and sentence of life imprisonment to the appellant shall meet the ends of justice, therefore, while maintaining the conviction of the appellant Muhammad Nisar under section 302(b) PPC for the murder of Muhammad Siddiq deceased, his sentence of death is converted into imprisonment for life as Tazir u/s 302(b) PPC. The sentence of payment of compensation amount to the tune of Rs.100,000/- under section 544-A, Cr.P.C and in default whereof to further undergo six months, as ordered by the learned trial court shall remain intact being justified. Benefit of section 382-B, Cr.P.C shall be extended to the appellant. This appeal No.1296 of 2010 stands dismissed with the above modification in the quantum of sentence of the appellant and Crl. Rev. No.1101 of 2009, filed by Farman Ali, complainant stands dismissed.

The **Murder Reference No.99 of 2010** is answered in the **NEGATIVE and the death sentence awarded to him is not confirmed.**

(Muhammad Anwaarul Haq)

Judge

(Syed Shahbaz Ali Rizvi)

Judge

Approved for reporting.

Judge

Judge

★

Rafiqat Ali

and for this purpose, the legislature has provided sections 337 & 338 Cr.P.C, which read as under: -

“337. Tender of pardon to accomplice. (1) In the case of any offence triable exclusively by the High Court or Court of Sessions, or any offence punishable with the imprisonment which may extend to ten years, or any offence punishable under section 211 of the Pakistan Penal Code with imprisonment which may extend to seven years, or any offence under any of the following sections of the Pakistan Penal Code, namely, sections 216-A, 369, 401, 435 and 477-A, [officer incharge of the prosecution in the District] may, at any stage of the investigation or inquiry into, or the trial of the offence, with a view to obtaining the evidence of any person supposed to have been directly or indirectly concerned in or privy to the offence, tender a pardon to such person on condition of his making a full and true disclosure of the whole of the circumstances within his knowledge relative to the offence and to every other person concerned, whether, as principal or abettor, in the commission thereof.

[338. Power to grant or tender of pardon. At any time before the judgment is passed, the High Court or the Court of Sessions trying the case may, with the view of obtaining on the trial the evidence of any person supposed to have been directly or indirectly concerned in, or District] to tender, a pardon on the same condition to such person.]”

Keeping in view the above provisions of law, it can safely be held that statement of an accused can only be recorded as a witness in any case after declaring him an approver.